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Matter MAT-2026-0602 — Helix Data Systems Pte Ltd — Master Services Agreement (Cloud Infrastructure)

From: Serene Chua (General Counsel, Helix Data Systems) <s.chua@helixdata.com.sg>

To: Jonathan Wee <jwee@weecorp-law.com.sg>

Date: 6 May 2026

Subject: Orbital Compute MSA — we are the customer

Jonathan,

We are migrating our core platform to Orbital Compute. They have sent their standard terms and they are, predictably, terrible for us: liability capped at three months' fees, no carve-out for data breach, no exit assistance, and termination only for cause.

We are the customer here and we are spending roughly S\$2.4m a year. I want our own paper, not a markup of theirs.

Non-negotiables: (i) a meaningful liability cap with a higher super-cap for data protection breaches; (ii) an indemnity covering third-party IP claims and regulatory penalties arising from their breach; (iii) a proper default clause with step-in and set-off, not just a right to terminate; and (iv) termination for convenience on notice.

Serene

From: Jonathan Wee <jwee@weecorp-law.com.sg>

To: Serene Chua <s.chua@helixdata.com.sg>

Date: 7 May 2026

Subject: RE: Orbital Compute MSA — we are the customer

Serene,

Agreed on all four. On the cap, the structure I would propose is a general cap at 150% of the fees paid in the preceding twelve months, with a separate and higher super-cap for breach of the data protection obligations, and a short list of genuinely unlimited heads. A single blended cap tends to collapse under negotiation into whichever number the vendor's insurers will wear.

On default — the clause worth fighting for is not termination, which everyone concedes, but the intermediate remedies: a rectification plan, suspension of payment of the affected charges, and a right to step in or procure the services elsewhere at the supplier's cost. Termination is a remedy you can only use once.

One point of realism: termination for convenience is the clause vendors resist hardest. Expect to pay for it, either through a longer notice period or a modest early-termination charge on a declining scale.

Jonathan

From: Serene Chua <s.chua@helixdata.com.sg>

To: Jonathan Wee <jwee@weecorp-law.com.sg>

Date: 7 May 2026

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Six months' notice, no charge. We would rather give time than money.

Serene